

ORIGINAL

00:050/030
022

A. R. M O L L E R H O



MAERSK SEALAND

RECEIVED

04 FEB 23 PM 4:13

BEFORE THE FEDERAL MARITIME COMMISSION
FEDERAL MARITIME COMM

PETITION NO. P3-99

**PETITION OF CHINA OCEAN SHIPPING (GROUP) COMPANY
FOR A PARTIAL EXEMPTION FROM THE CONTROLLED CARRIER ACT**

PETITION NO. P4-03

**PETITION OF CHINA SHIPPING CONTAINER LINES CO., LTD. FOR PERMANENT
FULL EXEMPTION FROM THE FIRST SENTENCE OF SECTION 9(C) OF THE
SHIPPING ACT OF 1984**

PETITION NO. P6-03

**PETITION OF SINOTRANS CONTAINER LINES CO., LTD. FOR A FULL
EXEMPTION FROM THE FIRST SENTENCE OF SECTION 9(C) OF THE SHIPPING
ACT OF 1984, AS AMENDED**

COMMENTS OF MAERSK SEALAND

These comments are submitted by Maersk Sealand in response to the Federal Maritime Commission's January 22, 2004, order re-opening the above-captioned petitions for comment.

Through petitions submitted in these three proceedings, China Shipping Container Lines Co., Ltd., China Ocean Shipping (Group) Company, and Sinotrans Container Lines Co., Ltd. have requested that the Federal Maritime Commission exempt them from certain provisions of section 9 of the Shipping Act of 1984, 46 U.S.C. app. § 1708 (known as the "Controlled Carrier Act"). The requested exemptions would enable these three Chinese carriers to reduce tariff rates immediately, rather than subject to the thirty-day waiting period prescribed by the Controlled Carrier Act.

Maersk Sealand has closely reviewed the requests made by Chinese carriers their petitions, and the broader conditions facing international maritime trade with China. Maersk Sealand believes that the Commission now has an adequate basis to grant the Section 16 exemptions sought by the Chinese carriers in these petitions. Accordingly, we support that the relief sought in these petitions be granted.

Respectfully submitted,

Eugene K. Pentimonti
Vice President

February 23, 2004

Maersk Inc.
1530 Wilson Boulevard, Suite 650, Arlington, VA 22209-2419
Telephone: 703-351-9200. Fax: 703-351-0130.
Internet: <http://www.maersksealand.com>